

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Begeny	Team: Team # 1	CCRB Case #: 200600424	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 12/30/2005 3:40 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/30/2007	Precinct: 67
Date/Time CV Reported Wed, 01/11/2006 12:45 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 01/11/2006 12:45 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Erik Worobey	10614	932229	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Mark Vazquez	29928	933447	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Erik Worobey	Discourtesy: PO Erik Worobey acted rudely toward § 87(2)(b)	A . Exonerated

Synopsis

On January 11, 2006, § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b), submitted a complaint to the CCRB on-line on behalf of § 87(2)(b). On February 9, 2006, § 87(2)(b) consented to have this case mediated, but it was later rejected by the NYPD and returned to the undersigned investigator on March 1, 2006. On December 30, 2005, § 87(2)(b) was sitting on the front porch of her aunt, § 87(2)(b) § 87(2)(b) reading a newspaper and selling arts and crafts that were displayed on a large table in front of her. PO Mark Vazquez and PO Erik Worobey from the 67th Precinct then approached § 87(2)(b). § 87(2)(b) identified these officers by the names on their uniform and their badge numbers. PO Worobey asked § 87(2)(b) for her identification several times and § 87(2)(b) explained that she did not have it with her and refused to provide the officer with her name. Both § 87(2)(b) and PO Worobey became heated and raised their voices during this conversation, but there was no physical interaction. Because § 87(2)(b) was currently suffering a great deal of stress and because her mother had recently died, she then “shut off” and could no longer listen to PO Worobey, who continued to shout at her. She began to look at her newspaper during this time, at which point PO Worobey took the paper from her hands, crumbled it up, and threw it in the trash (**Allegation A**). § 87(2)(b)'s cousin, § 87(2)(b) heard § 87(2)(b) and PO Worobey arguing and came from inside the home to the front door and asked what was the matter. PO Worobey asked § 87(2)(b) if she knew § 87(2)(b) and she explained that she did. § 87(2)(b) convinced § 87(2)(b) to provide the officers her name and birth date, which she provided. PO Worobey issued § 87(2)(b) a summons § 87(2)(a) 160.50 § 87(2)(b).

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) was interviewed at the CCRB on January 20, 2006 (Encl. 7A-7F). § 87(2)(b) is a § 87(2)(b) black female who at the time of this interview § 87(2)(b). § 87(2)(g)

On December 30, 2005 at approximately 3:40 PM, § 87(2)(b) was sitting alone, outside § 87(2)(b) where she had been selling arts and crafts. The items were displayed on a four-foot by two-foot table. § 87(2)(b) had been selling these goods since approximately 1:30 PM. § 87(2)(b) is the private home of § 87(2)(b)'s aunt, § 87(2)(b) § 87(2)(b) and was enclosed with a fence. § 87(2)(b)'s table was at the back of the yard away from the front gate towards the house. § 87(2)(b) was given permission by § 87(2)(b) to sell her items and she does this regularly. The gate to this fence was shut at this time. § 87(2)(b) was sitting on the steps that go down to the basement and was reading a copy of the *New York Times* because there were no customers present.

As § 87(2)(b) was looking down at her paper, she saw two uniformed officers standing in front of her. § 87(2)(b) identified the officers as PO Mark Vazquez and PO Erik Worobey from § 87(2)(b)'s observation of their names and shield numbers. § 87(2)(b) greeted the officers saying, “Hi officers, what can I do for you?” PO Worobey said to § 87(2)(b) “Go get me your ID.” § 87(2)(b) asked PO Worobey, “What did I do?” to which he replied, “Get me your ID.” § 87(2)(b) told PO Worobey that she left her pocket book at home and she did not have her ID with her. PO Worobey then told her that he was going to write her up for trespassing. PO Worobey told § 87(2)(b) to go inside and get her ID and she explained that the residence was not her home. § 87(2)(b) asked PO Worobey why he was requesting her ID and he told her, “Get me your ID and I’ll tell you what this is about.” § 87(2)(b) explained to PO Worobey that the home belonged to his aunt and that she gave her permission to be there. PO Worobey asked § 87(2)(b) again to give him her ID, and she again told the officer that she did not have it there. PO Worobey then told § 87(2)(b) that if she did not get him her ID he would arrest her. § 87(2)(b) asked PO Worobey again, “For what? What did I do?” PO Worobey then took one of the flyers § 87(2)(b) had on the table, looked at it, and asked her what her name was. § 87(2)(b) told PO Worobey

that if he told her what the situation was about then she would deal with him, but she did not know what the problem was, again explaining that she was not trespassing.

At this point, § 87(2)(b) “shut off,” and did not respond to anything the officer had said to her. She felt overwhelmed and emotional at this time, and could not focus on anything while PO Worobey continued to press her for her ID. She looked down again at her newspaper and ignored the officers for approximately thirty seconds. PO Worobey then said “I’m not taking this bull,” grabbed the newspaper out of her hands, crumbled it up, and tossed it in the trashcan inside the yard a few feet from where § 87(2)(b) was sitting. § 87(2)(b) then stood up and PO Worobey shouted close to her face, “Go get me the damn ID!” Loudly and clearly, § 87(2)(b) said to PO Worobey, “I told you I don’t have my ID and don’t speak to me like this.” She further stated to the officer, “I could be your mother. Don’t speak to me like a child.” As soon as she heard shouting, § 87(2)(b) § 87(2)(b) cousin, § 87(2)(b) opened the front door to the home and asked the officers what the problem was. PO Worobey asked § 87(2)(b) if she knew § 87(2)(b) and she stated that she did and that she was her cousin. PO Worobey asked § 87(2)(b) for § 87(2)(b) § 87(2)(b) s name, which she provided. PO Worobey asked § 87(2)(b) for § 87(2)(b) s address, and she stated that she didn’t know the exact number, but knew that it was on § 87(2)(b). PO Worobey asked § 87(2)(b) s date of birth, which she did not know, but she asked § 87(2)(b) to tell the officer her date of birth, which she did. PO Worobey asked § 87(2)(b) if she had given § 87(2)(b) permission to sell her things in front of the home, and she stated that her aunt, § 87(2)(b) § 87(2)(b) had given her permission. PO Worobey asked § 87(2)(b) where her aunt was, and she explained that she was at work. PO Worobey asked § 87(2)(b) to get in touch with her aunt. § 87(2)(b) went inside the house, called § 87(2)(b) § 87(2)(b) at work, and brought the phone outside and gave it to PO Worobey. PO Worobey asked § 87(2)(b) § 87(2)(b) on the phone for § 87(2)(b) s name and explained to her that § 87(2)(b) was selling things illegally on her property without a license. § 87(2)(b) § 87(2)(b) told the officer on the phone that she knew that § 87(2)(b) could not sell on the street, but she did not know that she couldn’t sell things from her yard. PO Worobey told PO Vazquez to write § 87(2)(b) a ticket § 87(2)(a) 160.50 because he couldn’t give her a summons for trespassing. PO Worobey then gave the phone back to § 87(2)(b) who took it back inside the house. PO Vazquez then said that he recognized § 87(2)(b) and explained to PO Worobey that he had written her a ticket for this before. While PO Vazquez was writing the summons, § 87(2)(b) began to write down the officers’ names and badge numbers, to which PO Vazquez stated, “Do what you want to do, take what you want to take.”

After the officers left, § 87(2)(b) cleaned up and put away the items she was selling, took the newspaper out of the garbage, and took it and the summons with her to the 67th Precinct in order to make a complaint against the officers. She arrived at the station and asked to speak to a supervisor. An unidentified white male uniformed officer told her that she had to speak with him first, and he asked her if she got a ticket which she gave to him, and he took it with him upstairs while § 87(2)(b) waited. He took the ticket back down to her, and told her to sit and wait. § 87(2)(b) waited at the police station for approximately two and a one-half hours without anyone speaking to her. She asked several different officers and all of them told her to wait. There were only a few other possible civilians at the station at this time, and when several more civilians arrived at approximately 7:20 PM, § 87(2)(b) left because she needed to go to church. § 87(2)(b) then went to her congressman, § 87(2)(b) § 87(2)(b) who met with her and took her complaint.

§ 87(2)(b) spoke with a woman whom she knows as § 87(2)(b) § 87(2)(b) who said that she had seen this incident from the second floor of her home across the street.

Approximately three months previous to this incident, PO Vazquez and an unidentified white male officer stopped § 87(2)(b) while she was carrying a small grill across the street that she used to cook corn. § 87(2)(b) asked PO Vazquez why she was stopped, § 87(2)(b) for which he issued her a summons.

Results of Investigation

Attempts to Contact Additional Witnesses

§ 87(2)(g)

PO Erick Worobey

On December 30, 2005, PO Worobey worked a 3:00 PM by 11:35 PM tour, in uniform, and was stationed alone on foot. PO Worobey was assigned to impact post number one. PO Vasquez was assigned impact post number two.

Memo Book: PO Erick Worobey

PO Worobey had no entries in his memo book regarding this incident (Encl. 8A-8C).

CCRB Statement: PO Erick Worobey

PO Worobey was interviewed at the CCRB on March 29, 2006 (Encl. 10A-10B).

On December 30, 2005 at approximately 3:40 PM, PO Worobey was with PO Vasquez walking from the stationhouse approaching § 87(2)(b), in the vicinity of § 87(2)(b). Behind a fence at a private home at § 87(2)(b) PO Worobey noticed § 87(2)(b) standing behind a table where she was selling cosmetics. On the table were cosmetics displayed in clear view. PO Worobey and PO Vasquez have encountered § 87(2)(b) in the past and have issued her summonses § 87(2)(b). PO Worobey and PO Vasquez entered through the gate, which was currently open, and approached § 87(2)(b). PO Worobey asked § 87(2)(b) if she had a vender's permit, and she explained that she did not. § 87(2)(b) had a strong accent and her English was not entirely clear. § 87(2)(b) expressed no confusion, however, with regards to understanding what PO Worobey requested. PO Worobey asked § 87(2)(b) for her identification, which she did not provide. PO Worobey asked § 87(2)(b) several more times for her ID, which she refused to provide.

On the ground by the stairs on the porch of the home was a newspaper that persisted to blow in the wind. § 87(2)(b) moved several times in order to fix the paper as it was blowing and appeared to be preoccupied with it. PO Worobey then picked up the newspaper and placed it on the table in front of § 87(2)(b) under a glass bottle so that it wouldn't blow away.

PO Worobey then rung the doorbell for § 87(2)(b) in order to inquire if § 87(2)(b) had permission to sell her items at a private home. A young female, later identified as § 87(2)(b) answered the door but she could not determine if § 87(2)(b) had permission to be there. § 87(2)(b) stated that her aunt might have known.

Eventually, § 87(2)(b) provided PO Worobey with some form of identification card that contained § 87(2)(b)'s name and address. § 87(2)(b) was then issued a summons § 87(2)(a) 160.50

§ 87(2)(g)

CCRB History for PO Erick Worobey

In the two years PO Worobey has worked with the NYPD, he has had no substantiated CCRB complaints. PO Worobey is currently a subject officer in five additional open CCRB complaints (Encl. 2A-2B).

CCRB History for § 87(2)(b)

§ 87(2)(b) has no previous CCRB complaints on file (Encl. 3A).

Disposition of Summons # § 87(2)(b)

§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Undisputed Facts

It is undisputed that PO Worobey and PO Vazquez approached § 87(2)(b) in front of § 87(2)(b) where she was selling items without a vendor's license. The officers requested § 87(2)(b)'s identification, which she did not initially provide. At some point § 87(2)(b) was distracted by a newspaper, which PO Worobey moved. § 87(2)(b) then provided her identification and PO Vazquez issued her a summons § 87(2)(a) 160.50.

§ 87(2)(g)

Officer Identification

There is no dispute that PO Worobey moved the newspaper at some point during this incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) stated that she was able to retrieve her newspaper from the trash and bring it to the precinct with her. § 87(2)(g)

§ 87(2)(g)

Credibility Assessment

§ 87(2)(b)

§ 87(2)(g). She admitted to refusing to provide the officers with her identification and that she eventually ignored the officers' request and began to read her paper. § 87(2)(g)

PO Erick Worobey

§ 87(2)(g)

Allegation A: PO Erick Worobey acted rudely towards § 87(2)(b)

§ 87(2)(b) stated that PO Worobey grabbed the newspaper from her hand, crumbled it up, and threw it in a nearby trash can without damaging the paper. PO Worobey stated that he picked the newspaper off the ground, which § 87(2)(b) was distracted with, and placed it under a glass on the table to keep it from moving.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) *PD v. Matias* (OATH Index Nos. 1996/00), which permits an officer to act in a discourteous manner to in order to forcefully make a point, gain compliance with an order or direction or in the heat of a highly dangerous situation (Encl. 1A-1C). § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: